

HOUSE No. 2765

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel Cahill

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to defining certain disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>1/15/2025</i>

HOUSE No. 2765

By Representative Cahill of Lynn, a petition (accompanied by bill, House, No. 2765) of Daniel Cahill relative to the disability retirement law for public employees. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to defining certain disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32 of the General Laws, as appearing in the 2020 Official Edition
2 is amended by adding the following: — Section 94C. Notwithstanding the provisions of any
3 general or special law to the contrary affecting the non-contributory or contributory retirement
4 system, any condition or impairment of health caused by any disease of the lungs or respiratory
5 tract, resulting in total disability or death of a member of such system whose impairment was
6 caused by negative environmental factors in the workplace and which occurred subsequent to
7 employment in such workplace shall be presumed to have been suffered in the performance of
8 the job unless the contrary be shown by competent evidence.